

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER OCCURRED ON
THE ACTUAL DOCKET — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES COURT OF APPEALS FOR THE FOURTH CIRCUIT

Leora Benton v. Blue Cedar Compliance, Inc.

No. SYN-CA4-26-CV-4101-CF-NEVER-OCCURRED

Counterfactual Mandate After Stay Release

Procedural basis

Issued July 15, 2026.

The court entered its opinion and judgment on June 15, denied Blue Cedar Compliance, Inc.'s timely rehearing petition on July 1, and granted a temporary stay of mandate on July 6. Blue Cedar later notified the court that it would not pursue the contemplated certiorari petition. By order entered July 15, the court dissolved the stay and released mandate for immediate issuance. No other order now withholds the court's judgment.

The clerk therefore issues this mandate on July 15, 2026. This date reflects the stay and release orders entered on the docket; it is not calculated by disregarding the period during which the stay was effective. The mandate carries forward the June 15 disposition without amendment. The abandoned proposal to seek certiorari supplies no additional holding and creates no condition on the proceedings that follow in the district court.

Counterfactual Mandate After Stay Release

Disposition transmitted

The district court's order narrowly excluding the materially new subject in Tessa Wynn's late declaration under Rules 26 and 37 is AFFIRMED. Wynn's timely disclosed comparator testimony remains available subject to ordinary evidentiary rulings. The summary judgment entered for Blue Cedar on Benton's Title VII retaliation claim is VACATED, and that claim is REMANDED for further proceedings consistent with the June 15 opinion.

The mandate does not determine credibility, find retaliatory intent, or prescribe the result after remand. It returns the case so the district court may proceed on the admitted record and any lawful later developments within the scope of the appellate decision. The clerk shall transmit certified copies of the mandate, opinion, judgment, July 1 rehearing order, and July 15 release order to the district clerk. Counsel for both parties shall receive electronic notice of issuance on the date shown.